

Terms of Service

Sleepless Event Discovery Platform

Effective Date: January 5, 2025

Last Updated: January 5, 2025

1. Introduction and Acceptance of Terms

Welcome to Sleepless, a mobile event discovery and ticketing platform operated by [Your Company Name](#) Ltd, a company registered in South Africa (hereinafter referred to as “Sleepless,” “we,” “us,” or “our”). These Terms of Service (the “Terms”) govern your access to and use of the Sleepless mobile application (the “App”), website, and related services (collectively, the “Services”).

By creating an account, accessing, or using the Services, you acknowledge that you have read, understood, and agree to be bound by these Terms, as well as our Privacy Policy. If you do not agree to these Terms, you must not use the Services. These Terms constitute a legally binding agreement between you and Sleepless.

2. Definitions

Throughout these Terms, the following definitions apply:

“User” refers to any individual who accesses or uses the Services, including both event attendees and event organizers.

“Event Organizer” refers to Users who create, manage, and promote events through the Organizer Portal.

“Attendee” refers to Users who browse, book, and attend events listed on the Platform.

“Content” refers to all text, images, graphics, logos, event information, user-generated content, and other materials available through the Services.

“Ticket” refers to a digital ticket or booking confirmation issued through the Services for admission to an event.

“QR Code” refers to the unique scannable code generated for each Ticket for verification purposes.

3. Eligibility and Account Registration

3.1 Age Requirement

You must be at least eighteen (18) years of age to create an account and use the Services. By registering, you represent and warrant that you meet this age requirement. If you are under eighteen (18) years of age, you may only use the Services under the supervision of a parent or legal guardian who agrees to be bound by these Terms.

3.2 Account Creation

To access certain features of the Services, you must create an account by providing accurate, current, and complete information, including your name, email address, and password. You may also register using third-party authentication services such as Google or Apple Sign-In. You are responsible for maintaining the confidentiality of your account credentials and for all activities that occur under your account.

3.3 Account Security

You agree to notify us immediately of any unauthorized use of your account or any other breach of security. Sleepless will not be liable for any loss or damage arising from your failure to comply with this security obligation.

3.4 Account Termination

We reserve the right to suspend or terminate your account at any time, with or without notice, if we believe you have violated these Terms or engaged in fraudulent, abusive,

or illegal activity.

4. User Conduct and Prohibited Activities

4.1 Acceptable Use

You agree to use the Services only for lawful purposes and in accordance with these Terms. You agree not to use the Services:

- In any way that violates any applicable national, provincial, or local law or regulation in South Africa or any other jurisdiction.
- To transmit, or procure the sending of, any advertising or promotional material without our prior written consent.
- To impersonate or attempt to impersonate Sleepless, a Sleepless employee, another User, or any other person or entity.
- To engage in any conduct that restricts or inhibits anyone's use or enjoyment of the Services, or which may harm Sleepless or Users of the Services.

4.2 Prohibited Activities

You agree not to:

- Use the Services to upload, post, or transmit any Content that is unlawful, harmful, threatening, abusive, harassing, defamatory, vulgar, obscene, or otherwise objectionable.
- Attempt to gain unauthorized access to any portion of the Services, other Users' accounts, or any systems or networks connected to the Services.
- Use any robot, spider, scraper, or other automated means to access the Services for any purpose without our express written permission.
- Interfere with or disrupt the Services or servers or networks connected to the Services.
- Reproduce, duplicate, copy, sell, resell, or exploit any portion of the Services without our express written permission.

- Create fake accounts, manipulate event listings, or engage in fraudulent ticket transactions.
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5. Event Listings and Organizer Responsibilities

5.1 Event Organizer Portal

Event Organizers may register for access to the Organizer Portal to create, manage, and promote events. By using the Organizer Portal, Event Organizers agree to provide accurate, complete, and up-to-date information about their events, including event name, date, time, location, description, ticket prices, and event posters.

5.2 Content Ownership and License

Event Organizers retain ownership of all Content they submit to the Services, including event descriptions, images, and promotional materials. By submitting Content, Event Organizers grant Sleepless a worldwide, non-exclusive, royalty-free, transferable license to use, reproduce, distribute, display, and perform the Content in connection with the Services and Sleepless's business operations, including for promotional purposes.

5.3 Event Accuracy and Compliance

Event Organizers are solely responsible for ensuring that all event information is accurate and that their events comply with all applicable laws and regulations, including but not limited to health and safety regulations, liquor licensing requirements, and age restrictions. Sleepless is not responsible for verifying the accuracy of event information or the legality of events listed on the Platform.

5.4 Cancellations and Changes

Event Organizers must promptly notify Sleepless and affected Attendees of any event cancellations, postponements, or material changes. Event Organizers are responsible for issuing refunds or alternative arrangements in accordance with their stated refund policy and applicable consumer protection laws.

6. Ticket Purchases and Bookings

6.1 Ticket Transactions

Attendees may purchase Tickets for events listed on the Platform. By purchasing a Ticket, you agree to pay the ticket price, applicable fees, and any taxes. All Ticket sales are final unless otherwise stated by the Event Organizer or required by law.

6.2 Payment Processing

Payments are processed through third-party payment processors. Sleepless does not store your full credit card information. By providing payment information, you represent and warrant that you are authorized to use the payment method and authorize Sleepless to charge the total amount to your payment method.

6.3 Service Fees

Sleepless may charge service fees for ticket transactions. All fees will be clearly displayed before you complete your purchase. Fees are non-refundable except as required by law.

6.4 QR Code Tickets

Upon successful purchase, you will receive a digital Ticket with a unique QR Code. You are responsible for presenting the QR Code for admission to the event. Sleepless is not responsible for lost, stolen, or damaged Tickets. Do not share your QR Code with others, as it may be used for fraudulent entry.

6.5 Refunds and Cancellations

Refund policies are determined by Event Organizers and will be displayed on the event listing. Sleepless is not responsible for issuing refunds unless the event is canceled by the Event Organizer or required by law. If you believe you are entitled to a refund, please contact the Event Organizer or Sleepless support.

7. Intellectual Property Rights

7.1 Sleepless Intellectual Property

The Services, including all Content, features, functionality, software, trademarks, service marks, logos, and trade names (collectively, the “Sleepless IP”), are owned by Sleepless or its licensors and are protected by South African and international copyright, trademark, patent, trade secret, and other intellectual property laws.

7.2 Limited License

Subject to your compliance with these Terms, Sleepless grants you a limited, non-exclusive, non-transferable, revocable license to access and use the Services for your personal, non-commercial use. You may not modify, reproduce, distribute, create derivative works of, publicly display, or otherwise exploit any Sleepless IP without our prior written consent.

7.3 User-Generated Content

You retain ownership of any Content you submit to the Services. By submitting Content, you grant Sleepless a worldwide, non-exclusive, royalty-free, transferable license to use, reproduce, distribute, display, and perform your Content in connection with the Services.

7.4 Copyright Infringement

If you believe that any Content on the Services infringes your copyright, please contact us at [legal@sleepless.co.za] with a detailed description of the alleged infringement. We will investigate and take appropriate action in accordance with the South African Copyright Act.

8. Third-Party Services and Links

The Services may contain links to third-party websites, services, or resources that are not owned or controlled by Sleepless. We are not responsible for the content, privacy policies, or practices of any third-party websites or services. You acknowledge and

agree that Sleepless shall not be liable for any damage or loss caused by your use of any third-party content or services.

9. Disclaimers and Limitation of Liability

9.1 No Warranties

THE SERVICES ARE PROVIDED ON AN “AS IS” AND “AS AVAILABLE” BASIS WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. SLEEPLESS DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE, OR FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS.

9.2 Limitation of Liability

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, SLEEPLESS SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR ANY LOSS OF PROFITS OR REVENUES, WHETHER INCURRED DIRECTLY OR INDIRECTLY, OR ANY LOSS OF DATA, USE, GOODWILL, OR OTHER INTANGIBLE LOSSES, RESULTING FROM:

- (a) YOUR ACCESS TO OR USE OF OR INABILITY TO ACCESS OR USE THE SERVICES;
- (b) ANY CONDUCT OR CONTENT OF ANY THIRD PARTY ON THE SERVICES;
- © ANY CONTENT OBTAINED FROM THE SERVICES;
- (d) UNAUTHORIZED ACCESS, USE, OR ALTERATION OF YOUR TRANSMISSIONS OR CONTENT.

IN NO EVENT SHALL SLEEPLESS’S TOTAL LIABILITY TO YOU FOR ALL CLAIMS EXCEED THE AMOUNT YOU PAID TO SLEEPLESS IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM, OR R1,000 (ONE THOUSAND RAND), WHICHEVER IS GREATER.

9.3 Event Liability

Sleepless is not responsible for the conduct of Event Organizers or Attendees, the quality or safety of events, or any injuries, damages, or losses arising from your attendance at events. You attend events at your own risk.

10. Indemnification

You agree to indemnify, defend, and hold harmless Sleepless, its affiliates, officers, directors, employees, agents, and licensors from and against any claims, liabilities, damages, losses, costs, or expenses (including reasonable attorneys' fees) arising out of or related to:

- (a) Your use of the Services;
 - (b) Your violation of these Terms;
 - © Your violation of any rights of another party, including Event Organizers or other Users;
 - (d) Your Content or any Content submitted through your account.
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11. Dispute Resolution and Governing Law

11.1 Governing Law

These Terms shall be governed by and construed in accordance with the laws of the Republic of South Africa, without regard to its conflict of law principles.

11.2 Jurisdiction

Any disputes arising out of or related to these Terms or the Services shall be subject to the exclusive jurisdiction of the courts of South Africa.

11.3 Dispute Resolution

In the event of any dispute, controversy, or claim arising out of or relating to these Terms or the Services, the parties agree to first attempt to resolve the dispute through good-faith negotiations. If the dispute cannot be resolved through negotiation within thirty (30) days, either party may refer the matter to mediation or arbitration in accordance with the rules of the Arbitration Foundation of Southern Africa (AFSA).

12. Modifications to Terms

Sleepless reserves the right to modify or update these Terms at any time, in our sole discretion. We will notify you of material changes by posting the updated Terms on the App or by sending you an email notification. Your continued use of the Services after the effective date of the updated Terms constitutes your acceptance of the changes. If you do not agree to the updated Terms, you must stop using the Services.

13. Termination

13.1 Termination by You

You may terminate your account at any time by contacting us at [support@sleepless.co.za] or by using the account deletion feature in the App.

13.2 Termination by Sleepless

We may suspend or terminate your access to the Services at any time, with or without cause, with or without notice, effective immediately. Grounds for termination include, but are not limited to, breach of these Terms, fraudulent activity, or conduct that harms Sleepless or other Users.

13.3 Effect of Termination

Upon termination, your right to use the Services will immediately cease. All provisions of these Terms that by their nature should survive termination shall survive, including but not limited to ownership provisions, warranty disclaimers, indemnity, and limitations of liability.

14. General Provisions

14.1 Entire Agreement

These Terms, together with our Privacy Policy, constitute the entire agreement between you and Sleepless regarding the Services and supersede all prior agreements and understandings.

14.2 Severability

If any provision of these Terms is found to be invalid or unenforceable by a court of competent jurisdiction, the remaining provisions shall remain in full force and effect.

14.3 Waiver

No waiver of any term of these Terms shall be deemed a further or continuing waiver of such term or any other term, and Sleepless's failure to assert any right or provision under these Terms shall not constitute a waiver of such right or provision.

14.4 Assignment

You may not assign or transfer these Terms or your rights under these Terms without our prior written consent. Sleepless may assign or transfer these Terms at any time without restriction.

14.5 Force Majeure

Sleepless shall not be liable for any failure or delay in performance due to causes beyond our reasonable control, including but not limited to acts of God, war, terrorism, riots, embargoes, acts of civil or military authorities, fire, floods, accidents, pandemics, strikes, or shortages of transportation, facilities, fuel, energy, labor, or materials.

15. Contact Information

If you have any questions, concerns, or complaints regarding these Terms or the Services, please contact us at:

Sleepless

Email: [support@sleepless.co.za]

Address: [Your Company Address]

Phone: [Your Contact Number]

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